



File No.: EXP202401448

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 9, 2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to the CITY COUNCIL OF MADRID with NIF P2807900B (hereinafter, CITY COUNCIL or complained party).

The facts brought to the attention of this authority are as follows:

The complainant is a victim of gender-based violence.

According to her statement, the complained party has sent to her aggressor's address the payment receipt for a traffic fine. This document includes the license plate of the offending vehicle, the date, and the location where the infringement occurred.

The complainant states that the reported car is not registered in her name (she changed the ownership so that her aggressor would not know this information). She also points out that her updated address is recorded in the files of the General Directorate of Traffic, which does not match the address to which the complained party sent the receipt. Furthermore, she indicates that the police officer who fined her was informed of her current address.

The complainant concludes that her safety has been compromised.

Along with the written complaint, the following documents are submitted:

- Screenshot of the electronic headquarters of the DGT related to the complainant, which lists her contact information and subscriptions, including her email address, phone number, and her address, which is ***ADDRESS.1
- Document titled Payment Receipt for Fine, which contains the Payment Receipt made through the website of the City Council of Madrid on 11/17/2023 for an amount of 45 euros. The identifier number is ***REFERENCE.1 and, as data, it states that it is a traffic fine, the license plate number of the vehicle, the reported fact, the date of the report, and the location of the infringement. The recipient of the communication is the complainant and the following address: ***ADDRESS.2

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- Document titled Fine Ticket corresponding to the report ***REFERENCE.1, issued by the City Council of Madrid - Issuer ***REFERENCE.2. This document contains data such as the infringed provision, the amount, the description of the facts, date, time, and place of the infringement, the license plate and vehicle data, identification of the officer, and regarding the data of the report, the complainant is identified by her name and surname, ID number, and, as address, it lists ***ADDRESS.3, with additional data being illegible, including the floor ***FLOOR.1 and the municipality of (...).

- Resolution ***REFERENCE.3 from the General Directorate of Equality of the Ministry of Family, Youth, and Social Policy, which grants access to the enabling title that certifies the status of victim of gender-based violence and allows the exercise of the rights recognized in Law 5/2005, of December 20, Comprehensive Law against Gender Violence of the Community of Madrid to the complainant dated 01/27/2022.

SECOND: On 01/23/2024, new documentation was submitted by the complainant related to the filed complaint consisting of

- Sales contract dated December 11, 2019, regarding the vehicle brand Opel Corsa and license plate number ***LICENSE_PLATE.1 in which the complainant is listed as the seller and A.A.A. as the buyer.
- Report of gender-based violence (report No. ***REFERENCE.4) filed on August 16, 2020. The report is filed for events that occurred at ***ADDRESS.2, against B.B.B., whose address is identified as the

same where the events took place.

- Judgment ***REFERENCE.5, (...) issued in the urgent proceedings quick trial ***REFERENCE.6 for a crime of injuries in which the complainant was the victim. In this judgment, B.B.B. is convicted of the crime of domestic violence to, among other penalties, 4 months of imprisonment and a prohibition from approaching within a minimum distance of 500 meters to the complainant, in any place where she may be, as well as to her home and workplace even when she is not present, for a period of sixteen months, and he is also prohibited from communicating with her by any means during the same time.
- Document Fees from the Central Traffic Headquarters, code 502 model 791, related to the year 2019 in the name of the complainant.

THIRD: On 01/25/2024, a new document was received from the complainant providing documentation related to her complaint, in which she attaches:

- Again, the sales contract referred to previously.
- The report of gender-based violence also referred to previously.

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- Settlement of the tax on property transfers and legal acts document dated 16/12/2019 in which the claimant is listed as the transferor of the vehicle registration ***MATRICULA.1.
- Screenshot of the electronic headquarters of the DGT already submitted with the claim.
- Certificate dated 28/09/2023 of recognition of disability degree by the Ministry of Social Policies and Family of the Community of Madrid in favor of the claimant.
- Technical assessment report from social services regarding situation or risk of social exclusion dated 3/12/2021 indicating that the claimant is in a situation or at risk of social exclusion, presenting special difficulties for integration into the labor market, as they are included in one of the situations specified in Article 2.1, section H of Law 44/2007, of December 13, regulating the regime of insertion companies. In this document, the following is listed as the claimant's address: ***DIRECCIÓN.3
- Optional technical report recognizing the claimant a degree of limitation in global activity of 28%, since 04/11/2020. It is also indicated that this resolution, which is temporary due to anticipated improvement, must be reviewed before 01/03/2023.
- Report from the mental health center of ***CENTRO.1 dated 09/01/2024 in which the claimant is listed as a patient and the following is indicated: referred from Primary Care due to consultation "Psychological violence between spouses/ex-spouses, followed by psychology point of gender violence, (...)”

FOURTH: On 26/01/2024, the claimant submits another document with documentation related to their claim

- Screenshot of the electronic headquarters of the General Directorate of Traffic dated 26/01/2024 with information about the change of address for notification purposes and vehicles, completed by the claimant and in which the following is included as the address: ***DIRECCIÓN.1
- Screenshot of the claimant's profile in the Madrid City Council with the path My folder - fines in which the section My fines appears empty.
- Document dated 17/11/2023, proof of operations carried out online. Operation number ***REFERENCIA.7, Issuer: ***REFERENCIA.8 - Traffic Fines - Voluntary Period, for the amount of €45, Bulletin ***REFERENCIA.1 related to the vehicle registration ***MATRICULA.1
- Report of the vehicle registration ***MATRICULA.1 dated 26/01/2024 requested by the claimant and in which A.A.A. is listed as the owner of the vehicle.

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FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), this claim was forwarded to the CITY COUNCIL, for it to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The notification of the transfer of the claim, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on 26/01/2024 as recorded in the acknowledgment of receipt in the file.

On 14/02/2024, a response from the claimed party was received, which included reports from the DG Traffic Management and the OA Informatics.

In the first report, the following is indicated:

Notifications resulting from the processing of traffic sanctioning procedures are sent to the address, as provided in Article 90 of Royal Legislative Decree 6/2015, of October 30, which approves the Consolidated Text of the Law on Traffic, Vehicle Circulation and Road Safety (LSV).

The processing of personal data and the communication of such data to third parties by the General Directorate of Management and Traffic Surveillance would be carried out within the framework of the sanctioning powers attributed to it by the agreement of June 29, 2023, of the Government Board of the City of Madrid, regarding the organization and competencies of the Urban Planning, Environment and Mobility Government Area, in relation to the provisions of the aforementioned LSV.

The exercise of this competence involves the processing of personal data obtained from vehicle owners, reported infractions, and official records, to process the corresponding sanctioning files whose competence falls to the Madrid City Council (art. 84 LSV).

Among the documentation provided by the interested party is the proof of payment for file

***REFERENCIA.1. The notification of the complaint linked to this sanctioning file, formulated for parking in a traffic lane, was made through the Electronic Traffic Address (DEV), since the citizen is registered in the aforementioned electronic communications system.

They paid the proposed fine with a 50 percent reduction through the Madrid City Council's website.

(...)

The proof of payment that is sent to citizens who pay a fine online does not form part of the sanctioning procedure itself in traffic matters, so the General Subdirectorate of Traffic Fines

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It is unknown to which address the payment receipt was sent and the reason why that specific address was used. (...)

Without prejudice to what is stated in the previous paragraph and generally speaking, when making a payment through the website of the City Council of Madrid, the interested party usually has the option to select the address to which the receipt will be sent; however, in this specific case, this administrative unit does not know the reason why it was sent to an address that may have been inappropriate for C.C.C.

In conclusion, the actions carried out by the General Directorate of Management and Surveillance of Traffic in relation to the sanctioning file ***REFERENCE.1, whose fine was paid by C.C.C., would not have involved any type of "security breach," since an electronic communication was used to notify the complaint, in accordance with current regulations. Furthermore, it is noted that this Sub-Directorate General for Traffic Fine Management, as the service that manages and processes sanctioning files for traffic violations, was not aware of the situation as a victim of gender-based violence of the sanctioned citizen. (...)

In light of the above, it concludes the following: The actions carried out by the General Directorate of Management and Surveillance of Traffic have not involved any type of security breach, since an electronic communication was used to notify the complaint, in accordance with current regulations.

The second report states the following:

(...) On November 3, 2023, the interested party was personally notified of the complaint regarding file ***REFERENCE.1 for an infraction on ***ADDRESS.4.

On November 17, someone came to pay the previously indicated file, and the necessary data was recorded in the fines application to generate a payment document that was handed to that person. Subsequently, on the same day, November 17, payment was made by card on the city council's website: (...)

On the night of November 17 to 18, the file with the information recorded by the reporting agent arrived at the fines application, which included the offender and indicated an address at ***ADDRESS.3. Since the file was already recorded in the fines application (having been registered to generate the payment document), this information was not recorded again.

On November 22, the bank sent the file with the collections from November 17, which included the file: ***REFERENCE.1, and it was cross-referenced with the electronic collections. Since the interested party did not indicate an address where they wanted to receive the payment receipt different from that which appears in the file, the payment receipt was generated and sent to the address that appears in the fines application (...)

This address corresponds to the person in the fines database and has been in the application since January 16, 2013. Since the notification issuance process was not initiated, no consultation was made with the DGT to update the address.

Regarding the measures adopted to prevent similar incidents from occurring, the following is noted:

As corrective measures for the future, the following will be studied:

- Inclusion of the sending of payment receipts in the same flow as the issuance of fine notifications, so that the address is verified against the DGT to formalize the sending, in case the interested party does not provide an address during the procedure.
- Review of the process for updating the data in the file when it is already generated in the system as a result of generating a payment document, to complete it with any omitted data.

SIXTH: On February 26, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

SEVENTH: On December 23, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 5.1.d) of the GDPR and Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the LPACAP, the complained party submitted a written statement of allegations on January 14, 2025, in which, in summary, they state the following:

(...) IAM has implemented corrective actions that prevent similar events from occurring. (...) For the payment receipt of the fine to be sent to the incorrect address, a series of circumstances coincided:

- Personal notification of the complaint.
- Delay in sending it to the traffic fines information system by the source of the complaint.
- Generation of a bank payment document before the complaint was loaded into the system.
- Payment of the fine before the loading of the complaint and the subsequent process of updating the address against the DGT databases that is carried out for its notification.
- No indication of an alternative address on the payment screen for sending the receipt.

The different information systems operated according to their respective original designs, but this particular sequence of events caused the notification to be made at the incorrect address.

Regarding the measures adopted, the following is reported:

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Since the beginning of October 2024, the postal sending of payment receipts has been generally replaced by its electronic equivalent, which will be available for download, printing, or sending to an email address indicated at that moment. This modification, therefore, also applies to the area of traffic fines. The following image shows a screenshot with the presentation of the electronic receipt and the

buttons that allow the indicated actions. (...)

By clicking the "Send e-mail" button, the person who made the payment can enter their preferred email address. This ensures that the receipt arrives directly at the indicated email address, eliminating the need to rely on postal addresses. (...)

In this way, in addition to promoting electronic processing, the possibility of unforeseen problems due to outdated addresses in any of the systems requiring telematic payment is eliminated. By using email, it is guaranteed that the receipt will reach the correct address provided by the person who made the payment, thus avoiding any inconvenience related to outdated or incorrect postal addresses.

NINTH: On February 11, 2025, a new document from the complainant was received by this AEPD to file a COMPLAINT against the entity Ayuntamiento de Madrid for the violation of my personal data and the improper disclosure of protected information, indicating that on January 31, 2025, I became aware that the reported administration improperly provided the registration certificate of my aggressor, B.B.B., which constitutes a serious violation of my right to privacy and security.

Along with this new document, the following is provided:

- Certificate of recognition of disability degree dated September 28, 2023, referred to in the third antecedent.

- File titled Municipal Technical Reports Documentation with the following content:

- ☐ Internal note from the Head of the Claims Department II of the government area of works and equipment to the General Directorate of Management and Traffic Surveillance, General Subdirectorates of traffic fines management, regarding the request for a report on damages due to the disclosure of personal data, with reference File: ***REFERENCE.9. The Annex states the following: 1.- It is of interest to know the reason why the payment receipt for the fine with identifier ***REFERENCE.1 for the amount of 45 euros was sent to the address ***ADDRESS.2, while another different address is noted on the fine itself. (...)

- ☐ Report dated April 24, 2024, which refers to the fact that it was requested by the Claims Department II of the General Subdirectorates of Patrimonial Responsibility and concerns "the address to which the payment receipt for the fine with identifier ***REFERENCE.1 was sent." It explains the reasons for the events.

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The object of this claim is in the same terms as reflected in the fifth antecedent.

- Report of complaint already submitted by the claimant along with their initial claim

- Request addressed to the Town Hall of ***LOCALIDAD.1 by the Town Hall of Madrid in the following terms:

Given that the requested data is necessary to substantiate the facts on which the claim for patrimonial liability directed against the Town Hall of Madrid is based, it is necessary for the Town Hall of ***LOCALIDAD.1 to send, for the purpose of incorporating it into the file:

- Certificate confirming the periods of time during which B.B.B., ***NIF.1, has been registered at the residence located in ***DIRECCIÓN.2 in that municipality.

- The historical certificate of movements from the Municipal Register of Inhabitants in response to the request indicated in the previous point.

- Internal Note from the Claims Department II to the Data Protection Office, also referencing the request for a report on damages due to the disclosure of personal data.

File: ***REFERENCIA.9

- Response detailing the reports collected - reflected in the fifth antecedent of this resolution proposal - and concluding that these reports were notified to the Spanish Agency for Data Protection on February 14, 2024 (proof attached) and to date no information has been received from them regarding this claim.

- Internal Note from the Claims Department II to the Recording, Digitization, and Postal Office, also referencing the request for a report on damages due to the disclosure of personal data.

File: ***REFERENCIA.9. Specifically, a report was requested on the following aspects:

- The manner in which such notification was made, as well as whether it was sent by certified mail, including, if applicable, a copy of the documents justifying the date of receipt and the identification of the recipient.
- The reason why this address appears in the notification when both in the fine delivered to the claimant and in the General Directorate of Traffic, other addresses were listed. If applicable, an indication of the file from which the data was extracted.

In the response, the following is noted: The Postal Office is responsible for processing postal shipments through the corresponding postal operator and does not intervene at any time in the preparation of the content of such shipments, both regarding the included documentation and the address to which the postal shipment is directed. Both aspects arrive at this unit already defined and are known by the managing unit that prepares the shipment in this specific case, the General Subdirectorate of Traffic Fines Management. Regarding the nature of the shipment, none has been located with the received code. Upon consulting the Information Systems Service for Fines and Sanctions, dependent on the General Subdirectorate of Corporate Information Systems, they inform us that it is a communication by ordinary mail and that there is an open file with the Spanish Agency for Data Protection, whose processing is being followed by the General Subdirectorate of Traffic Fines Management and the Cybersecurity Center of the Town Hall of Madrid (IAM).

- Internal Note with the request for a report from the General Subdirectorate of Patrimonial Liability to the General Directorate of Traffic Management and Surveillance (...) on the following issues:
 - The reason why this address appears in the notification when both in the fine delivered to the claimant and in the General Directorate of Traffic, other addresses were listed. If applicable, an indication of the file from which the data was extracted.
 - Report on the status of the processing of the file opened by the Spanish Agency for Data Protection regarding this matter, indicating the allegations made by the Town Hall and the measures that, if applicable, have been adopted or are to be implemented, along with any documentation available regarding said file.
 - Any other matter deemed relevant to resolve the claim made by the interested party.

No response is recorded to this last request for a report.

TENTH: On February 25, 2025, a new document from the claimant was received with the following documentation:

- Form from the Town Hall of Madrid completed by the claimant, whose section 5. States the following: "I have received a new notification from the Data Protection Agency initiating my claim and in point 6. Requests, states the following: "That I be given a response regarding my requested compensation." This document is submitted in duplicate: without and with registration data.
- Document communicating to the claimant the adoption of the agreement to initiate sanctioning proceedings, dated December 23, 2024.

It appears from the documentation accompanying this new entry that it refers to a request for compensation for liability raised by the claimant against the Town Hall of Madrid and is unrelated to the present sanctioning procedure.

ELEVENTH: On March 4, 2025, a new document from the claimant was received in which they express their concern about the events that occurred and request the resolution of their claim.

TWELFTH: On March 11, 2025, a proposal for resolution was made with the following sense.

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That the Presidency of the Spanish Agency for Data Protection declares that the CITY COUNCIL OF MADRID, with NIF P2807900B, has infringed the provisions of Article 5.1.d) and Article 5.1.f), both of the GDPR, violations classified under Article 83.5.a) of the GDPR.

THIRTEENTH: On March 21, 2025, a written statement of allegations from the responding party regarding the proposed resolution was received. In this document, the following is stated:

First.- Contradictory information: The first contradiction in the information provided by C.C.C. is found in the first background, where it is reflected that in her letter dated January 9, 2024, the "claimant states that the reported car is not registered in her name (she modified the ownership of it so that her aggressor would not know this information)." (The underlining is ours).

However, such a statement does not align with the documents that the interested party herself provides, since the sale of the vehicle took place on December 16, 2019 (the transfer is recorded in the Central Traffic Headquarters Registry on January 9, 2020) and therefore, on a date prior to the events (August 16, 2020) for which her aggressor was convicted by the judgment of November 12, 2020, which makes it difficult to explain why she would modify the ownership of the vehicle so that her aggressor would not know it. In any case, the transfer may not have been real, simulating a sales contract to someone who could be a relative to carry out the change of ownership in the Registry, but she would still maintain the use and enjoyment of the vehicle (since she drives it), which does not seem like a very effective security measure.

Changing the ownership in the vehicle registry can be a useful security measure in cases of gender-based violence, as it can help protect the identity and location of the victim. However, continuing to use the vehicle could present risks if the aggressor knows the vehicle and can easily identify it, which could be the case, since C.C.C. was its owner previously.

The second contradiction in the statements of the interested party is that, as can be inferred from the same first background, C.C.C. claims that, "in the files of the General Directorate of Traffic, her updated address is recorded, which does not coincide with the address to which the responding party has sent the proof." Furthermore, it means that the police officer who fined her was informed of her current address.

We find three different addresses:

1. The one recorded in the Central Traffic Headquarters Registry; that is: ***ADDRESS.1.
2. The one provided to the reporting officer and therefore appears in the complaint report: ***ADDRESS.3,
3. The one that was recorded as the address for notification purposes in the aforementioned Registry previously and was used to send the proof of payment: ***ADDRESS.2.

In addition to this, C.C.C. has a Digital Traffic Address (DEV).

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Therefore, it is not clear what C.C.C. is referring to when stating that "the updated address is recorded in the files of the General Directorate of Traffic," since this address does not match the one that she claims is her current address (and which she provided to the reporting agent).

The third issue that could be described as "imprecise" in the sanction proposal from the AEPD is that it is stated as a proven fact that "On 11/17/2023, the complainant made a payment of 45 euros corresponding to the traffic fine mentioned in the previous section through the website of the defendant."

This service is unaware of how it has been proven that it was the complainant who made the payment through the website.

To make a payment for a traffic fine from the City of Madrid through its electronic headquarters, it is necessary either to access the payment directly from the fine files, in My Folder:

<https://sede.madrid.es/micarpeta> (for which identification of the person accessing is required), or through the procedure "payment of traffic fines in voluntary period" (for which only a payment document is needed, as could be the case subject to the complaint, given that a payment voucher has indeed been issued for the payment of the fine derived from file ***REFERENCE.1), as shown in the screens reflected below: (...)

According to the information available to this Subdirector General for Management of Traffic Fines, it is confirmed that the payment of the fine corresponding to file ***REFERENCE.1 was made, but it is not confirmed that it was done by C.C.C., since the payment inquiry indicates that the payment was

made from the "Internet" environment, that is, from the public area of the electronic headquarters, where identification is not necessary.

Second.- Addresses for the purpose of notifications of traffic fines:

(...) The sanctioning file with the complaint bulletin number ***REFERENCE.1 was processed as a result of the commission of an infraction consisting of parking in a traffic lane on 11/03/2023 at 11:44 hours the vehicle with license plate ***LICENSE_PLATE.1.

The municipal police officer who reported the facts notified the complaint to C.C.C. as the driver of the vehicle at the time the infraction was committed.

The driver indicated to the officer as the address for notification purposes the one at ***ADDRESS.2. However, since C.C.C. has a Digital Traffic Address, the address provided by the interested party at the time of the complaint had no relevance for the sanctioning procedure because Article 90 of RDL 6/2015, of October 30, which approves the Consolidated Text of the Law on Traffic, Vehicle Circulation, and Road Safety (LSV) provides for such cases. (...)

Article 90 LSV establishes a hierarchy of addresses that must be respected by the Administrations with sanctioning competencies in traffic matters when

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notify the complaints that are not delivered at the time and send the other notifications resulting from the sanctioning procedure. (...)

To send the notifications to the appropriate address, with the confidence that it is an updated address, as provided in the aforementioned Article 90 of the LSV, each time a notification is made within the sanctioning procedure, it is necessary to conduct a prior consultation with the Registry of the Central Traffic Headquarters.

As already indicated, since the driver had a DEV, the address provided by the interested party to the agent at the time of the complaint would have had no relevance for the purposes of the traffic sanctioning procedure, nor would the address registered with the Central Traffic Headquarters have had any relevance.

In short, since C.C.C. had a DEV, the notifications, if made, would only have been sent to the DEV, but not to any postal address.

Third.- Payment of the fine and proof of payment:

According to the information in the administrative file, on 11/17/2023, a payment slip was issued to make the payment of the fine corresponding to file ***REFERENCE.1. The fine was paid on the same day with a 50 percent reduction, through the website of the City Council of Madrid, in accordance with the provisions of Article 94 of the LSV.

The payment with the legally provided reduction within the twenty days following the notification of the complaint resulted in the termination of the procedure, without the need to issue an express resolution, as well as without the necessity to send any notification to C.C.C., in accordance with the provisions of Article 94 of the LSV for the abbreviated sanctioning procedure (...):

Notwithstanding the above, although the administrative file records the payment, once the deposit has entered the municipal coffers, the document that serves as proof of payment sent to citizens who pay a monetary sanction via the internet is not part of the sanctioning procedure itself in traffic matters, nor is it a document included in the administrative file.

The proof of having made the payment, as an external document to the procedure, is also not a notification that must be sent to the address established by Article 90 of the LSV itself, nor is it subject to the rules of the legally established procedure.

The LSV, as a specific norm in traffic matters, does not provide for the manner in which proof of payment must be provided nor where it should be sent, if applicable.

Therefore, the proof of payment could not have been sent to the DEV (where complaints and other notifications resulting from the traffic sanctioning procedure are notified, as well as notices and incidents related to the administrative authorizations provided in the LSV, as stipulated in its Articles 60

and 90). (...)
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According to the channel used, the proof of payment is delivered in one way or another, because, as mentioned, there is no rule in the description of the sanctioning procedure of the LSV regarding how proof of payment should be provided, nor specifically, where it should be sent. (...)

Since the payment platform of the municipal electronic headquarters is managed by the autonomous organization Informática del Ayuntamiento de Madrid (IAM), this General Subdirectorate has requested clarification on the payment procedure. Based on the information provided by IAM, the following conclusions can be drawn:

First, once the payment was made, the person who made the payment accessed the following screen to select the address where the proof of the completed procedure should be sent: (...)

The screen offered two options regarding the address data where the proof should be sent:

The first: "Check this box only when you wish for the proof of payment to be sent to the same address that appears in the payment request."

The second: "Check this box only when you wish for the proof of payment to be sent to an address different from the one stated in the payment request." In this second option, the following screen appeared to fill in the address details: Address, Postal code, city, and province. (...)

It happens that in the present case, C.C.C. had not received any payment request, since the notification of the fine was delivered at the same time as the commission of the infraction. And the fine report, where the reporting agent reflected the data that the interested party had provided, cannot be considered, in any case, a payment request. The interested party had to request a payment slip to be able to make the payment of the fine; and in that payment slip, no address is stated for notification purposes, as it is merely a payment document.

Therefore, neither the first option ("Check this box only when you wish for the proof of payment to be sent to the same address that appears in the payment request") nor the second ("Check this box only when you wish for the proof of payment to be sent to an address different from the one stated in the payment request") offered the person who completed the procedure a reference address that would allow them to know where the proof would be sent.

However, the second alternative presented the possibility of choosing an address to send the proof, which was very interesting for someone, like C.C.C., who wants to ensure that the proof reaches the desired destination. Nevertheless, according to the information provided by IAM in its technical report, there is no record that when completing the procedure, the second option was selected and the details of a postal address to receive the proof of payment were filled in. The interested party has also not stated in her claim that she did so. Had she expressly indicated an address, the proof would have been sent to the indicated address.

Therefore, it can be concluded that the person who completed the procedure, whether C.C.C. directly or another person acting on her behalf, did not take the necessary measures.

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necessary nor paid the appropriate attention to the details required to ensure the destination of the payment receipt. And this oversight or lack of diligence in carrying out the procedure led to the absence of a suitable address to which the receipt of the payment made could be sent.

Since the interested party did not indicate an address where they wished to receive the payment receipt, it had to be generated and sent to the address that appeared in the fine management application.

Of the addresses that were recorded in the fine management system, the DEV was excluded (since

the DEV is reserved for notifications made within the procedure and for notices and incidents related to administrative authorizations, and therefore cannot be used to send the payment receipt of a fine). It is at this point that the anomaly arises regarding the usual procedure established for the selection of addresses, as explained by IAM in its technical report: the address chosen by the software program to send the payment receipt was the one held for C.C.C. in the fines database (**ADDRESS.2), derived from the Central Traffic Headquarters Registry of their last infraction. The address was not updated because no inquiry had been made to the Central Traffic Headquarters Registry to update the address, as no notification issuance process had been initiated previously (we have already explained that the citation was notified on the spot by the citing officer). Therefore, the address from the aforementioned Registry (**ADDRESS.1) was not integrated into the system.

Considering that the data from the citation report had not been entered into the system through the usual channel but rather from the request for a payment document (as IAM points out in its report, "the necessary data to generate a collection document that is delivered" to the person requesting it is recorded in the fines application), the information collected in the citation report regarding the address was also not registered in the system (**ADDRESS.3). (...)

In conclusion, although the address to which the payment receipt is sent is not the one indicated in the regulations governing the traffic sanctioning procedure, IAM has indeed provided a hierarchy to determine the order in which the address should be selected, in order to send the document to the same address where the notification or payment request would have been made (as reflected in the screens displayed on the electronic headquarters). However, as IAM has explained in its technical report, this order was altered in the present case due to the circumstances described; that is, the payment of the fine was made before the citation report with the address given to the officer was loaded.

In its report, IAM acknowledges that it has implemented corrective actions to prevent a similar situation from occurring in the future and describes measures aimed at providing greater ease of downloading documents resulting from procedures carried out at the electronic headquarters, avoiding postal dispatch.

Fourth.- Verification of the data when issuing the promissory note:

(...) While it is true that the data of C.C.C. were not updated in the traffic fines management system, it must be clear that for a person who

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If a DEV (Digital Address Verification) is assigned, the postal address data (both the one provided for a specific procedure and the one reflected in the Central Traffic Headquarters Registry) becomes irrelevant from the perspective of the traffic sanctioning procedure, since the LSV (Traffic Law) itself mandates disregarding any address when the recipient of a notification has a DEV, as is the case with the claimant. If a DEV is available, the notification is sent to the DEV.

Furthermore, as already explained, although a fine is the consequence of a sanctioning procedure, and its payment, when made with a 50 percent reduction, implies its conclusion, the issuance of a payment voucher is a parallel procedure to the sanctioning process itself, and payment receipts cannot be considered part of it.

Any person who has the citation can request a payment voucher to pay the fine resulting from the citation for the committed infraction. This can be done in person at the offices of the General Subdirectorate for Fine Management and Traffic, or by requesting it via email.

Since it does not necessarily have to be the interested party in the sanctioning procedure who requests the payment voucher, and given that the address should not have any impact on the payment, it is inappropriate that at the time of delivering the payment voucher it is confirmed whether the data in the files is updated or not.

Additionally, the format of the payment receipts and the manner in which they are obtained vary according to the payment channel used by the person making the payment.

Therefore, the manner in which the payment voucher is used to make the payment of the fine cannot be anticipated by the person delivering the payment voucher. That is to say, the verification that the data in the files is updated is a procedure that must be disconnected from the issuance of the payment voucher, for the protection of the data itself. (...)

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: There is information from the electronic headquarters of the DGT (General Directorate of Traffic) regarding the claimant, which includes contact and subscription data such as their email address, phone number, and address, which is ***ADDRESS.1

SECOND: On 03/11/2023, the City Council of Madrid - Issuer ***REFERENCE.2 - issued the citation ***REFERENCE.1, corresponding to a traffic fine. This document contains data such as the infringed provision, the amount, the description of the facts, date, time, and place of the infraction, the license plate, and vehicle data - ***LICENSE_PLATE.1 - identification of the agent. Regarding the data of the citation, the claimant is identified by their name and surname, ID document number, and as an address, ***ADDRESS.3 is listed, with additional data being the floor ***FLOOR.1 and the municipality of Madrid.

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THIRD: On 17/11/2023, the claimant made a payment of 45 euros corresponding to the traffic fine mentioned in the previous section through the website of the responding party.

FOURTH: The payment receipt generated and sent by the responding party has the identifier number ***REFERENCE.1 and states that it is a traffic fine, the vehicle's license plate number - ***LICENSE_PLATE.1 - the reported fact, the date of the citation, and the place of the infraction. The claimant is listed as the recipient of the communication, and the following address is provided: ***ADDRESS.2. This is the address to which the aforementioned payment receipt is sent.

FIFTH: There is a report of gender-based violence (report no. ***REFERENCE.4) filed on August 16, 2020. The report is filed regarding events that occurred at ***ADDRESS.2, against B.B.B., whose address is identified as the same where the events took place.

SIXTH: There is a technical assessment report from social services regarding the situation or risk of social exclusion dated December 3, 2021, which lists the following as the claimant's address:

***ADDRESS.3

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Moreover, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, since the CITY COUNCIL carries out, among other processes, the collection and storage of personal data of individuals such as name and surname,

email address, and domicile.

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The CITY COUNCIL carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

In this regard, it should be noted that the complaint concerns unauthorized access by a third party—loss of confidentiality—of data belonging to the complainant—name and surname, vehicle registration, address—related to a sanctioning procedure for a traffic violation that occurred on the urban roads of the municipality of Madrid.

In light of the above, it must be taken into account that, according to Article 7—Competences of municipalities—of Royal Legislative Decree 6/2015, of October 30, which approves the consolidated text of the Law on Traffic, Motor Vehicle Circulation, and Road Safety (the underlining is ours).

It is the responsibility of municipalities:

a) The regulation, organization, management, surveillance, and discipline, through their own agents, of traffic on the urban roads under their ownership, as well as the reporting of the violations committed on such roads and the sanctioning of the same when not expressly attributed to another Administration.

(...)

Therefore, we are faced with a processing of personal data for which the CITY COUNCIL is responsible.

III

Allegations to the initiation agreement

As reflected in the background, the allegations made against the initiation agreement of the present sanctioning procedure emphasize that the IAM has implemented corrective actions that prevent similar events from occurring. (the underlining is ours)

Furthermore, after listing the causes that, in their opinion, motivated the events subject to the complaint, they state that

The different information systems operated in accordance with their respective original designs, but this particular sequence of events caused the notification to be made to the incorrect address. (the underlining is ours)

In this regard, it should be noted, therefore, that the responding party acknowledges the facts subject to the complaint and does so not only explicitly but also implicitly by adopting measures to prevent similar events from occurring in the future.

It is noteworthy that, among the measures adopted—since October 2024—the postal dispatch of payment receipts has been replaced by electronic receipts, which can be downloaded, printed, or sent to an email address, at the choice of the interested party. In support of these statements, screenshots are provided that describe the process. Measures that, in light of

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the claimed facts would have effectively prevented a loss of confidentiality of the claimant's data.

IV

Allegations to the Proposal for Resolution

Despite the fact that, as indicated in the previous Foundation, the responding party acknowledges the facts and based its allegations on the initiation agreement of the present sanctioning procedure on the measures adopted to avoid similar situations in the future as those analyzed in this file, upon making the proposal for resolution, it presents a series of allegations of very different natures that will be addressed below.

It begins its written allegations by making a series of considerations regarding the apparently

contradictory information provided by the claimant. Firstly, regarding the change of ownership of the vehicle involved in the traffic violation committed by the claimant, the CITY COUNCIL questions not only whether this change occurred before the conviction for gender-based violence against the claimant's ex-partner— to whose address, let us remember, the payment receipt for the fine was sent— but also questions the plausibility of said change of ownership— suggesting that it may not have been real— and its effectiveness concerning the claimant's intention to avoid being identified— since, in its opinion, knowing the characteristics of the vehicle, remaining as the habitual driver of the same implied the risk of being recognized. In this regard, we note that the fact that the conviction referred to by the claimant and now used by the CITY COUNCIL to formulate allegations occurred on a certain date does not prevent the facts that motivated it— and, therefore, the legitimate claim of the claimant to avoid them or mitigate their effects— from having occurred earlier. Therefore, the circumstance that the sentence for gender-based violence was issued almost a year after the change of ownership of the claimant's vehicle was made only demonstrates the situation that the claimant was presumably suffering at that time, which was indeed confirmed by the sentence issued. It is surprising that the CITY COUNCIL alleges this situation to question the conduct of the claimant regarding the facts subject to the present sanctioning procedure for which this circumstance has, certainly, a limited relationship. It is also surprising that this argument continues by suggesting that said change of ownership was real, given that the claimant continued to drive the vehicle, and its effectiveness regarding the intended objective, all of which are matters that fall outside the competencies of this AEPD, which is not responsible for assessing them, and which are unrelated to the circumstances analyzed in the present sanctioning procedure.

The CITY COUNCIL continues its allegations concerning the alleged contradictions of the claimant by highlighting the existence of 3 different addresses related to the claimant. In response to this allegation, let us remember that it is the address indicated by the claimant in the complaint report that was expressly stated by the claimant as the address for notification purposes, and whose failure to be incorporated into the claimant's file— in accordance with the flow of information that occurred in the file and due to the delay between the transfer of the information contained in the complaint report and the issuance of the payment receipt— caused the events analyzed in the present file. Some deficiencies in the

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verification of the information which, let us remember, was evidenced and accepted by the claimant in their allegations regarding the initiation agreement.

The respondent also questions whether it was the claimant themselves who made the payment of the fine, the proof of payment of which was sent to an incorrect address. In this regard, and contrary to the assertion of the interested party, there are no indications that allow for doubt that it was the claimant who made the payment, nor can it be denied that the fact that someone else did it on their behalf is a possible option, given that, as the CITY COUNCIL rightly acknowledges in its written allegations, it is possible to make such payments through the procedure "payment of traffic fines in the voluntary period" by accessing the public area. Furthermore, while this is an argument that seems to want to highlight deficiencies in the way the claimant proceeded, and for which there is certainly no minimum indication, it must be pointed out that payment through this public area of the website would, in any case, be an option that the respondent itself allows and does not question the fact that the payment has been made.

Next, the CITY COUNCIL makes a series of allegations regarding the apparent irrelevance of the address indicated for notification purposes by the claimant in the complaint report, arguing that, as the holder of a Digital Traffic Address, this is the one that should be used. All this is to subsequently argue that the proof of payment is not documentation included in the sanctioning file.

Thus, the respondent continues its written allegations outlining the sequence of events that can be summarized as follows:

- The complaint report contains an address for notification purposes expressly indicated by the claimant. The notification of the complaint was made at the same moment as the commission of the infraction (by delivering the complaint report).
- This complaint report, where the reporting agent reflected the data that the interested party had provided, cannot be considered, in any case, a payment request.
- The interested party had to request a payment slip to be able to make the payment of the fine; and in that payment slip, there is no address for notification purposes, as it is merely a payment document.
- Once the payment slip was obtained, the payment was made through the City Council's website, where the following option was given to the interested party:

"Check this box only when you wish for the proof of payment to be sent to an address different from the one stated in the payment request."

This option was not used, so, in the opinion of the CITY COUNCIL, the allegations made by the claimant arise from the fact that, when carrying out the payment procedure, the payer did not take the opportunity they had to provide an appropriate and updated address (different from the one registered with the Central Traffic Headquarters, as they did at the time of the complaint to the municipal police officer). And this is after acknowledging, however, that when making the payment, none of the options offered to the person

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The procedure was carried out at a reference address that would allow knowing where the receipt would be sent. (the underlining is from this AEPD)

-

The payment of the fine occurred prior to the inclusion of the data provided by the complainant in the complaint form:

Considering that the data from the complaint form had not been entered into the system through the usual channel but rather from a request for a payment document (...), the information collected in the complaint form regarding the address was also not registered in the system (**ADDRESS.3).

-

It concludes by indicating the following: It is at this point that the anomaly arises concerning the usual procedure established for the selection of addresses, (...): the address chosen by the computer program to send the payment receipt was the one that was held for the C.C.C. in the fines database (**ADDRESS.2), originating from the Central Traffic Headquarters Registry of its last infraction. The address was not updated because no inquiry had been made to the Central Traffic Headquarters Registry to update the address, given that no notification issuance process had been initiated previously (we have already explained that the complaint was notified on the spot by the reporting agent). Therefore, the address from the aforementioned Registry (**ADDRESS.1) was not integrated into the system. (the underlining is from this AEPD)

Thus, according to what is described by the CITY COUNCIL, the sending of the payment receipt for the fine to an address that did not correspond to that of the complainant but rather to that of her ex-partner, convicted of gender-based violence, was carried out because i) that was the address that appeared in the fines database ii) that address was not updated because, as expressly indicated, no notification issuance process had been initiated previously iii) the data collected in the complaint form were not used, specifically, the address indicated by the complainant since the issuance of the promissory note and the confirmation of payment occurred prior to the data from the complaint form being uploaded into the system.

And all of this considering that the complaint form is not a payment request, so the address contained therein, provided by the complainant, is not the one referred to by the options available to the interested party at the time of payment—which always refer to the address included in the payment request—and that no address is stated in the promissory note. Circumstances that make it difficult to understand that the CITY COUNCIL claims that, when carrying out the payment procedure, the payer

did not take the opportunity to provide an appropriate and updated address, specifically by marking the following box: "Check this box only when you wish the payment receipt to be sent to an address different from that which appears in the payment request." All of this because from what the responding party has alleged, it is not clear what should, in their opinion, be understood as a payment request, beyond the complaint form, the only document, let us remember, that the complainant had and in which there was an address that she herself had provided.

In conclusion, and in the event that the complaint form constitutes the notification of the infraction and that there is no document that the responding party expressly considers a payment request (the aforementioned complaint form not being one), it seems difficult that the

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interested party - in any case, but for the situation at hand, the claimant - may know to which address the payment receipt made through the AYUNTAMIENTO's website will be sent and, above all, that it will not be sent to the address that was expressly identified and recorded by the interested party in the complaint bulletin.

For all the above reasons, the allegations made cannot be accepted.

V

Obligation not fulfilled. Integrity and confidentiality

Letter f) of Article 5.1 of the GDPR states the following:

"1. Personal data shall be:

(...)

f) processed in such a manner as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, and as noted in the complaint, the claimant, upon the initiation of sanctioning proceedings against her by the AYUNTAMIENTO for violation of traffic safety regulations - specifically, the violation of parking in a traffic lane, an infringement provided for in Article 40.1 c) of the Law on Traffic, Circulation of Motor Vehicles and Road Safety - indicates, in the section related to the notification of the complaint, an address located at ***ADDRESS.3.

At this point, and although the AYUNTAMIENTO considers that the payment receipt of the fine is not considered a notification, the fact is that the only moment when the claimant had the opportunity to indicate the address where she wanted the acts related to the infringement to be communicated was the one indicated in the complaint bulletin, as mentioned in the previous section. The fact that this information was recorded after the payment of the sanction resulted in the receipt being sent to an outdated address that not only no longer corresponded to the claimant but was also the address of her ex-partner, who had been convicted of gender-based violence. Indeed, the AYUNTAMIENTO indicates that at the time the complaint bulletin is received - the night of November 17 to 18 - with the address identified for notification purposes - the sanction is already registered, since "On November 17, someone came to request payment of the previously indicated file and the necessary data to generate a collection document was recorded in the fines application, which was delivered to that person."

Furthermore, according to the information related to the Municipal Register of Inhabitants provided by the claimant in her submission dated February 11, 2025 - ninth background of the present resolution proposal - this ex-partner was still registered at that address at the time the events occurred.

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Subsequently, in the written allegations to the proposed resolution, it is basically stated that the

address indicated in the complaint report cannot be taken into account for notification purposes, as the claimant is the holder of a Digital Traffic Address (DEV), an address that prevails; however, the notification had already occurred at the same moment as the events took place, through the delivery of the complaint report.

It is then pointed out that the payment receipt is not part of the sanctioning procedure, having been generated prior to the issuance of the payment document, which is necessary to proceed with the payment of the fine, as was done through the public area of the CITY COUNCIL's website. This payment was made before the data from the complaint report was entered into the system, and the receipt was sent to an outdated address: The address was not updated because no inquiry had been made to the Central Traffic Headquarters Registry to update the address, given that no notification issuance process had been initiated beforehand (we have already explained that the complaint was notified on the spot by the reporting agent).

This assertion allows us to conclude that, in cases where the notification of traffic violation complaints is made through the delivery of the corresponding report by the reporting agent to the offender, there is no prior notification issuance process, despite the fact that the report itself allows the offender to indicate an address for notification purposes, as the claimant did.

On the other hand, if the complaint report cannot be considered a payment request as indicated by the respondent, and as the respondent also states, when the complaint is delivered to the offender at the moment, there is no other notification of the complaint, the argument that the interested party can choose the address to which the payment receipt will be sent cannot be accepted—because the fact that there is no payment request is that there was a complaint report notified at that moment to the claimant; a complaint report in which, we insist, an address was expressly recorded by the claimant. Furthermore, according to the respondent, the data from the complaint report were not taken into account as they were entered after the issuance of the payment document and the formalization of the payment itself. These circumstances, especially when, as we say, the complaint report form expressly provides the possibility to indicate an address, along with the record in the fines database of an outdated address, caused a breach of confidentiality of the claimant's personal data related to the commission of the violation.

Following the events, the CITY COUNCIL has reported the adoption of a series of corrective measures. In this regard, while it is necessary to react positively to the measures adopted, it must be remembered that this does not prevent the violation from having been committed and that the facts subject to the claim constitute a breach of personal data protection regulations.

Therefore, in accordance with the evidence available at this moment of the sanctioning procedure resolution, it is considered that the known facts

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constituting an infringement, attributable to the CITY COUNCIL, for violation of Article 5.1 f) of the GDPR.

VI

Unfulfilled obligation. Accuracy of the data

Article 5 in its letter d) states that

“1. Personal data shall be: (...)

d) accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy'); (...)”

The aforementioned provision must be related to Article 5, accuracy of the data, of the LOPDGDD, which establishes in its section 1 the following:

“1. In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, where necessary, kept up to date.

2. For the purposes provided for in Article 5.1.d) of Regulation (EU) 2016/679, the data controller shall

not be held liable, provided that it has taken all reasonable measures to ensure that the inaccuracy of the personal data, with respect to the purposes for which they are processed, is erased or rectified without delay, when the inaccurate data:

- a) Were obtained by the controller directly from the data subject.
- b) Were obtained by the controller from a mediator or intermediary in cases where the applicable regulations in the sector of activity to which the data controller belongs established the possibility of intervention by a mediator or intermediary who collects the data of the data subjects in their own name for transmission to the controller. The mediator or intermediary shall assume the responsibilities that may arise in the event of communication to the controller of data that do not correspond to those provided by the data subject.
- c) Were processed by the controller after having been received from another controller by virtue of the exercise by the data subject of the right to data portability in accordance with Article 20 of Regulation (EU) 2016/679 and the provisions of this organic law.
- d) Were obtained from a public register by the controller.”

In relation to this principle, Recital 39 of the GDPR indicates among other issues that:

“(39) (...) to ensure that personal data are not kept longer than necessary, the data controller must establish retention periods for their deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data are rectified or erased.”

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And considering 71:

“(71) (...) in order to ensure fair and transparent treatment of the data subject, taking into account the specific circumstances and context in which personal data is processed, the data controller must use appropriate mathematical or statistical procedures for profiling, apply appropriate technical and organizational measures to ensure, in particular, that factors introducing inaccuracies in personal data are corrected and the risk of error is minimized, secure personal data in a way that takes into account the potential risks to the interests and rights of the data subject, and prevent, among other things, discriminatory effects on individuals based on race or ethnic origin, political opinions, religion or beliefs, trade union membership, genetic condition, health status, or sexual orientation, or processing that leads to measures producing such effects.”

According to the facts described in the preceding sections, it is noted that the proof of payment of the fine for a traffic violation attributed to the claimant was sent to a postal address - ***ADDRESS.2 - which not only did not correspond to the address expressly indicated by the claimant for notification purposes of the specific sanctioning file - ***ADDRESS.3 - but also did not match the data reflected in the Drivers' Registry, managed by the General Directorate of Traffic, of which the claimant provides a screenshot. Indeed, according to the file, the data in that registry would be ***ADDRESS.1.

In this regard, the CITY COUNCIL has expressly stated in its allegations that the address used for sending the proof of payment is the one that appeared in the fines database since January 16, 2013. It expressly acknowledges that this data was not updated and that, as the notification process was not initiated, no consultation was made to the DGT to update the address.

Without intending to be repetitive, we must insist that this notification was not issued because it was understood that the notice of violation, delivered at the time to the interested party, constituted the notification of the infringement. However, it is in that notice where an address for notification purposes was expressly stated. Therefore, according to the CITY COUNCIL's assertions, the consultation to the DGT to verify the updated data of the offenders would not be carried out when the notice of violation is delivered directly by the agent to the interested party, as it is understood that notification occurs at that moment and no notification issuance process is initiated (in the terms indicated by the CITY COUNCIL itself). This circumstance, it can be ventured, would occur frequently.

It should be noted that the General Directorate of Traffic itself provides municipalities with access to information regarding drivers, vehicles, and sanctions through the ATEX platform. This platform,

although its migration to the General State Administration Data Intermediation Platform (PID) was announced for the end of September 2024, was fully operational and available to the CITY COUNCIL at the time the events occurred.

It should also be noted that, while all measures taken to adapt procedures to data protection regulations are positively valued,

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data, regarding the measure reported in the sense of "reviewing the process of updating the data in the file when it has already been generated in the system as a consequence of the generation of a promissory note, to complete it with the data that has been omitted." The present case demonstrates that, beyond the requirement for information to be complete, it must also be accurate and up to date. Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the AYUNTAMIENTO, for violation of Article 5.1 d) of the GDPR.

VII

Classification of the infringements of Article 5.1.f) and d) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following: "Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that imply a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VIII

Proposal for declaration of infringement

Article 83 "General conditions for the imposition of administrative fines" of the GDPR, in its paragraph 7, establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) Public bodies and entities of public law linked to or dependent on the Public Administrations.

e) Independent administrative authorities.

f) The Bank of Spain.

g) Public law corporations when the purposes of the processing relate to the exercise of public law powers.

h) Public sector foundations.

i) Public Universities.

j) Consortiums.

k) The parliamentary groups of the General Courts and the Autonomous Legislative Assemblies, as well as the political groups of Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority will issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution will be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

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3. Notwithstanding the provisions established in the previous section, the data protection authority will also propose the initiation of disciplinary proceedings when there are sufficient indications for doing so. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is evidenced that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible officer and will order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, with an explicit indication of the identity of the responsible or in charge of the treatment who has committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be governed by its specific regulations.

This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of responsible or in charge of the treatment listed in section 1 will be resolved, in any case, by declaring the infringement.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been evidenced, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF MADRID, with NIF P2807900B, has infringed the provisions of Article 5.1.f) of the GDPR and Article 5.1.d) of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF MADRID.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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